CFI 045/2025 Stelian Gheorghe v (1) Bsa Ahmad Bin Hezeem & Associates Llp (2) Jimmy Haoula

DECEMBER 16, 2025 COURT OF FIRST INSTANCE - ORDERS

Claim No: CFI 045/2025

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

STELIAN GHEORGHE

Claimant

and

(1) BSA AHMAD BIN HEZEEM & ASSOCIATES LLP

(2) JIMMY HAOULA

Defendants

ORDER WITH REASONS OF H.E. JUSTICE SAPNA JHANGIANI

UPON the Judgment of H.E. Justice Sapna Jhangiani dated 28 October 2025, finding in favour of the Defendants and ordering the Claimant to pay the Defendants' costs, to be immediately assessed on the standard basis (the "Judgment")

AND UPON the First Defendant filing its Statement of Costs on 20 October 2025

AND UPON the Second Defendant filing his Statement of Costs on 3 November 2025

AND UPON reviewing the Rules of the DIFC Courts ("RDC")

IT IS HEREBY ORDERED THAT:

1. The First Defendant's costs are immediately assessed in the sum of AED 137,000.00. The Claimant shall pay that sum to the First Defendant within 14 days.

2. The Second Defendant's costs are immediately assessed in the sum of AED 88,000.00. The Claimant shall pay that sum to the Second Defendant within 14 days.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 16 December 2025

At: 3pm

SCHEDULE OF REASONS

1. The provisions of the RDC which are relevant to the immediate assessment of the Defendants' costs are as follows:

Relevant Rules

"38.33

It is the duty of the parties and their legal representatives to assist the Judge in making an immediate assessment of costs in any case to which Rule 38.30 applies, in accordance with Rules 38.34 to 38.36.

38.34

Each party who intends to claim costs must prepare a written statement of the costs he intends to claim showing separately in the form of a schedule:

(1) the number of hours to be claimed;

(2) the hourly rate to be claimed;

(3) the qualifications and seniority of fee earner;

(4) the amount and nature of any disbursement to be claimed;

(5) the amount of the legal representative's costs to be claimed for attending or appearing at the hearing; and

(6) any tax to be claimed on these amounts.

38.35

The statement of costs should follow as closely as possible Form P38/01 and must be signed by the party or his legal representative.

38.36

The statement of costs must be filed at Court and copies of it must be served on any party against whom an order for payment of those costs is intended to be sought. The statement of costs should be filed and the copies of it should be served as soon as possible and in any event not less than 24 hours before the date fixed for the hearing.

38.37

The failure by a party, without reasonable excuse, to comply with Rules 38.33 to 38.36 will be taken into account by the Court in deciding what order to make about the costs of the claim, hearing or application, and about the costs of any further hearing or detailed assessment hearing that may be necessary as a result of that failure."

2. Pursuant to RDC 38.2, when assessing costs on a standard basis the Court must be satisfied, having regard to all the circumstances, that the costs were proportionately and reasonably incurred, and were proportionate and reasonable in amount. The receiving party carries the burden of proof in satisfying the Court of these factors.

3. The Court must also have regard to the following factors set out at RDC 38.23:

"(1) the conduct of all the parties, including in particular:

(a) conduct before, as well as during, the proceedings; and

(b) the efforts made, if any, before and during the proceedings in order to try to resolve the dispute;

(2) the amount or value of any money or property involved;

(3) the importance of the matter to all the parties;

(4) the particular complexity of the matter or the difficulty or novelty of the questions raised;

(5) the skill, effort, specialised knowledge and responsibility involved;

(6) the time spent on the case; and

(7) the place where and the circumstances in which work or any part of it was done."

4. RDC 38.24 provides that in applying the test of proportionality, the Court will have regard to RDC 1.6(3), which forms part of this Court's overriding objective at RDC 1. Further, that the relationship between the total costs incurred and the financial value of the claim may not be a reliable guide; a fixed percentage cannot be applied in all cases to the value of the claim in order to ascertain whether or not the costs are proportionate.

The Defendants' Statement of Costs

5. The First Defendant's Statement of Costs claims the following costs:

(a) AED 40,833.33 of fees incurred by Antonios Dimitrakopoulos at an hourly charge-out rate of AED 3,500 for 11 hours and 40 minutes work on "Attendances on Others" and AED 98,875.00 incurred for 28 hours and 15 minutes on "Work Done on Documents".

(b) Expenses and Disbursements of AED 130,737.00 stated to be for "DIFC Court Fees and Counsel Fees".

6. The Second Defendant's Statement of Costs claims the following costs:

(a) AED 36,750.00 of fees incurred by Antonios Dimitrakopoulos at an hourly charge-out rate of AED 3,500 for 10 hours and 30 minutes work on "Attendances on Opponents" and AED 29,750.00 for 8 hours and 30 minutes for Work Done on Documents"

(b) Expenses/Disbursements of AED 130,737.00. The description accompanying the disbursements is as follows: "The Second Defendant incurred the costs of the First Defendant's employee lawyers who drafted the relevant submissions on his behalf and engaged in correspondence with the opponent and the Registry again on his behalf as well as 50% of the external counsel fees set out above and as also claimed on behalf of the First Defendant. Only 50% of the said External Counsel fees listed above and amounting to AED 130,737 are to be attributed to the Second Defendant."

The Court's Decision

7. The Claimant was directed to file submissions commenting on the Defendants' Statement of Costs, but did not do so.

8. In terms of the value of this case, the Claimant's Claim Form asserted that the value of his claim was AED 25,732,058.28. The matter was undoubtedly important to both parties, as the crux of the issue before this Court was whether this Court was the correct forum to determine this potentially high-value claim. I find that the skill, effort, knowledge and responsibility of the legal team deployed by the Defendants, as well as the time spent on the matter, was appropriate to the complexity of the matter

9. In relation to the expenses and disbursements of AED 130,737.00 claimed by the Defendants, the First Defendant claimed these costs relate to "DIFC Court Fees and Counsel Fees" and the Second Defendant claimed that these fees relate to "External Counsel fees". These descriptions are unclear and not entirely consistent, and I assume that this is due to an error. Both Defendants could have been more clear in their respective Statement of Costs about precisely what these costs relate to, and the extent to which they should be shared. For example, whilst the Second Defendant's Statement of Costs refers to sharing 50% of these costs, the First Defendant's Statement of Costs does not. Nevertheless, I have assumed that these costs are to be shared equally between the Defendants.

10. Taking into account all the matters referred to at RDC 38.23 and set out above, and as is appropriate when assessing costs on an immediate basis, I apply a broadbrush approach in assessing the Defendants' costs and in applying an appropriate discount to the full costs claimed such that the costs recovered are both reasonable and proportionate in accordance with RDC 38.2.

11. Adjusting the First Defendant's costs claimed such that only 50% of the expenses and disbursements of AED 130,737.00 are claimed (equal to AED 65,368.50), the total costs claimed by the First Defendant are AED 205,076.83 (AED 40,833.33 plus 98,875.00 plus 65,368.50). I immediately assess the First Defendant's costs in the sum of AED 137,000.00.

12. Adjusting the Second Defendant's costs claimed such that only 50% of the expenses of AED 130,737 are claimed (equal to AED 65,368.50), the total costs claimed by the Second Defendant are AED 131,868.50 (AED 36,750.00 plus 29,750.00 plus 65,368.50). I immediately assess the Second

Defendant’s costs in the sum of AED 88,000.00.

13. The sums awarded to each Defendant are to be paid by the Claimant to each Defendant within 14 days of this Order.